



File No.: EXP202306264

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 12/03/2021, a document was received by this Agency submitted by the City Council of Barcelona, informing that the actions of Oiz Bikesharing, S.L., with NIF B95976106 (hereinafter OIZ), may lead to a breach of the provisions of personal data protection regulations. The reasons on which the complaint is based are as follows:

"1.- Background...

Among others, a total of 1,392 temporary licenses for special common use of public domain for the parking of mopeds and motorcycles for shared use were awarded in the municipality of Barcelona among the four operators (Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL)...

7. The four companies Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL, also participated in the procedure for the precarious granting of temporary licenses and consequently submitted responsible declarations in which they confirmed their status as independent companies, and committed and accepted to comply with the conditions and obligations of the call. Through this procedure, a total of 854 temporary licenses for special common use of public domain were awarded to the four operators. Thus, the four operators are awarded a total of 2,246 temporary licenses for special common use of public domain for the parking of mopeds and motorcycles for shared use in an economic exploitation regime in the municipality of Barcelona...

9. By virtue of the above, to operate in public space, each company has a mobile application for users to register and make use of the bicycle and motorcycle rental service, which are parked in the public space of Barcelona. In these mobile applications, non-compliances have been detected on the part of the four companies, given that when a person registers in one of the applications of the four companies, the application recognizes the user and shares the data among the four companies, without the user having registered in the other applications of the companies or having consented (this point is detailed further below). Additionally, we must add another company, Reby Rides S.L., which is not an awardee of licenses, but which in the inspection reports dated December 1, 2020, and the report from the Mobility and Infrastructure Management dated December 29, 2020, which is mentioned later, it is demonstrated that apparently, it also facilitates the rental of motorcycles from the four previous companies in its mobile application, and consequently facilitates the data of the users registered in the previous applications, without prior consent from the users.

10. On August 27, 2020, and September 14, 2020... (name of a third entity) (definitive awardee of licenses) sent emails to C/ Jorge Juan, 6

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corporation in which it warned that it had detected certain practices carried out by the four definitive license awardees that could constitute a violation of data protection regulations in relation to the regulatory decree and the call for applications decree.

11. For this reason, the City Council of Barcelona conducted its own checks on August 19, 2020, and an inspection report was issued in which the detected non-compliances were recorded (...).

12. Likewise, on October 6, 2020, this Directorate received a letter from the company... (name of a third entity, different from the previous one), license awardee, in which it stated that certain practices carried out by the four operators and definitive license awardees (Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL) could constitute a violation of competition regulations as well as data protection regulations (...).

13. In light of the above, the Mobility and Infrastructure Management again conducted its checks, and on October 26, 2020, municipal officials personally and directly verified the aforementioned actions carried out by Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL, and consequently, four inspection reports were issued, which are attached as ANNEXES 4, 5, 6, and 7 respectively, in which certain actions that could constitute a violation of data protection regulations are highlighted and detailed below. An inspection report issued on December 1, 2020, is attached as ANNEX 8, which demonstrates that apparently, Reby Rides, a company that does not have licenses nor has participated in the procedure, also facilitates the rental of motorcycles from the four previous companies in its mobile application, and consequently provides the data of registered users in the previous applications, without prior consent from the users...

IV.- Object of the complaint...

In the inspections carried out on October 26, 2020, it was verified that when a user registers on the Iberscot application, they are automatically registered on the applications of Oiz, Tucycle, and Avant, as indicated in the same application, since it does not require the necessary documentation again to register the new user, with the following message that appears in the screenshots of the Reports: "You are already registered! We have detected that you are already registered on another collaborating platform. We will use the data you have added to expedite the process"...

In the inspections carried out on October 26, 2020, it was verified that by entering €10 in the Avant application, which is added to the previous €0.22 in the account, and making a trip with this same application, the balance is reduced by €0.66, going from €10.22 to €9.56. (...).

It should be noted that the balance, once the €10 is entered into the Avant application wallet, in the case of the OIZ company's wallet, an additional €1 is added as a gift to the account as indicated by the promotion of the application itself (highlighted in green in the screenshot). At the same time, it was verified that having made only one trip with the Avant company with a charge of €0.66, the accounts of the other three companies were also reduced by €0.66 (see Annexes 4, 5, 6, and 7). It was verified that with the other three companies, Oiz, Tucycles, and Iberscot, no trips had been made. Even so, the wallet balance also decreased (...).

3. In the privacy policy of the companies, users are informed that personal data is shared with entities of the same group...

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Likewise, regarding the Inspection Report dated December 1, 2020, concerning the external company Reby Rides, S.L., it is verified that:

That the companies Avant, Oiz, Tucycle, and Iberscot share the databases of records and users with a fifth company: Reby Rides SL (an external company that has not been awarded licenses)..."

Along with the complaint, the following documentation is provided, among others:

. Copy of the Inspection Report issued by the City Council of Barcelona, which includes the checks carried out on the dates 08/19 and 08/26/2020, 10/26/2020, and 12/01/2020, concerning the following entities: Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz Ridesharing, S.L., and Reby Rides, S.L.

. Copy of the technical report, dated 01/29/2021, issued by the Mobility and Infrastructure Management, in which it requests to inform the competent authorities regarding data protection of the analysis included in its report and in the minutes, so that the corresponding investigations can be initiated, and in case a violation of the regulations by Avant Fullstep SL (Avant), Oiz Ridesharing SL (Oiz), Tucycle Bikesharing SL (Tucycle), and Eco-logica Turismo Sostenible SL (Iberscot) is confirmed, it requests to initiate the corresponding revocation of licenses and the adoption of the necessary sanctions or measures.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), on 04/19/2021, the aforementioned complaint was forwarded to OIZ, so that it could proceed with its analysis and inform

this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 04/22/2021, as recorded in the acknowledgment of receipt in the file.

On 05/21/2021, this Agency received a response letter in which OIZ states:

“OIZ is a company that develops its economic activity in the shared electric mobility sector, and specifically, has been awarded a certain number of temporary special common use licenses for the parking of shared mopeds in the city of Barcelona...”

First of all, it is important to highlight that on January 26, 2021, following the request made by the AEPD (request number E/10004/2020), OIZ submitted an informative letter detailing information on the requested issues. The AEPD, after receiving and subsequently analyzing it, decided to process the filing of the request, considering that there is no violation of the current regulations regarding Data Protection by OIZ...

Without prejudice to the preceding statements, OIZ... has proceeded to carry out again

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an internal review to verify the Privacy Policy...

In the review conducted, it was detected that, due to a technical error, the link to the list of collaborating platforms in the city of Barcelona, provided for better user information, was not active, which has been corrected and enabled...

The review has allowed us to confirm that, in general, adequate and comprehensible information is provided to users regarding the possibility that personal data of users who have previously registered in the Application of a mobility operator collaborating with OIZ may be communicated, provided that they expressly consent in advance. The improvements introduced following the first requirement from the AEPD are considered adequate and sufficient...

Regarding the first consideration about the operation of OIZ through its application and in relation to aggregation platforms, OIZ agrees to state that:

...OIZ offers its services through various platforms to provide a higher quality service to its users, among which is the Reby platform, a platform that in Barcelona acts as an aggregator of shared mobility, known as a Mobility as a Service platform.

We believe it is unnecessary to reiterate what the user registration process is, nor the mechanism for obtaining user consent for the collection of their data in the OIZ application, as it has been detailed in the response to the previous complaint made by the Agency...

In the complaint that concerns us, special reference is made to the Reby app, through which OIZ motorcycles can be rented; we proceed to explain below how it works:

1. The user must register in the Reby app, expressly accepting both the Terms and Conditions of the app and its Privacy Policy. In that registration process, Reby becomes responsible for processing the personal data of the user once they have given their consent.
2. In the event that the user wishes to use the services offered by OIZ, one of the rental service operators that is integrated into the aggregator must register as a user beforehand.
3. In this case, to facilitate the registration process for the user in the Reby app at OIZ, the user is asked to consent in advance and expressly that Reby may communicate a series of data to OIZ. This makes it easier for the user to access a new service from the Reby application.

Considering the steps outlined above, we believe that OIZ users are fulfilling the requirement to give their express consent for the communication of their data to other mobility operators, contrary to what the municipality has alleged. OIZ, on the other hand, explains in its Privacy Policy that in certain cases it will receive data from third-party companies that are collaborators, always with authorization.

Regarding the second consideration about the operation of the payment system for OIZ users, it is important to state that:

The OIZ payment system is a secure and simple payment system that operates through a payment token. Tokenization is a process by which certain data that may be considered personal or sensitive is replaced by a random value or token. It is a system widely used in banking transactions, as it allows replacing card numbers with another unique value that does not reveal the identity of the cardholder.

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...user payments are securely managed through the entity Kernel Labs, S.L.U... which acts as the data processor. Payment data is processed solely and exclusively by Kernel...

The system works as follows;

1. Although the user enters banking details in the OIZ application, it does not store the data, but directly transfers it to Kernel, which, under the aforementioned contract, is responsible for verifying that the payment method is valid...

2. Once verified, it transfers a Card Token or digital card to OIZ. The Card Token replaces the sensitive card data with a unique identifying code.

3. The applicable service fees are automatically charged by OIZ once the trip is completed, using the payment method provided by the user. OIZ does not have access to the complete card details provided by the user, but only the "payment token" of the user's card or digital card in Kernel...

In addition to the aforementioned, we consider it pertinent to indicate some advantages of this payment system...

- Regarding the Reby MaaS app, the particularity is that from this application, a Reby user who has also registered with OIZ can not only check the available balance on their digital card but also view a history of the trips or routes they have taken across all services aggregated in the application in which the user has registered.

As explained in the response to the previous request, OIZ shares some of the user's personal data, always with the express and prior consent of the user, with other shared mobility operators with whom it maintains a collaborative relationship. Among this data is the user's payment "Token," that is, access to the numerical code or "wallet" in which the credit personally entered by the user is stored and which allows for charging the services provided by OIZ to the user...

In summary, the user is adequately informed in the Privacy Policy that OIZ stores their payment token data and may receive payment token data from other collaborating companies if the user has permitted it...

Along with the document, the following documentation is provided, among others:

- Copy of the Privacy Policy in its version of 05/21/2021. From the content of this document, the following is noteworthy:

"Data Collection

At OIZ, we obtain the personal data of our users through three channels, which we indicate below...

1. Data entered by the user themselves...

2. Data obtained during the use of the service...

3. Personal data that comes from third-party collaborating companies. When creating your User account, we will ask for permission to verify if you are already registered on other mobility platforms that collaborate with OIZ in order to obtain the following data, necessary to provide you with our services:

- Identification data (name, surname, ID or passport);

- Email address;

- Driver's license;

- Payment token. The token is a unique numerical code made up of similar digits that

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replaces the credit card data during the transaction. Therefore, your card data will not be transmitted, only this secure code.

In this way, your registration process in our App will be much more agile, as you will not have to manually re-enter all the data. OIZ will only have access to the data you have provided to our partners if you give us your prior authorization. Under no circumstances will that data be matched without your consent. You can consult the list of mobility platforms collaborating with OIZ in the city of Barcelona at this link (<https://oizbike.com/plataformas-de-movilidad-colaboradoras-en-la-ciudad-de-barcelona/>).

"7. Data Sharing

At OIZ, we guarantee that your personal data will never be sold to third parties. However, we want to explain that some of your data may be securely transferred, in accordance with our obligations as data controllers, to third parties with whom we work to facilitate and improve our services...

User Personal Data may be transferred to the following recipients:

- . Entities of the OIZ Group...
- . Public Administrations, Courts, and Tribunals...
- . Providers that offer services to OIZ...
- . Payment entities...
- . Mobility entities collaborating with OIZ: when you enter your personal data on the OIZ App platform, you will be asked to authorize the transfer of such data to third collaborating companies with which we share the platform. The sole purpose of this transfer is to expedite the registration process in their respective applications should you wish to register and use them in the future. This transfer will only occur with the prior and express consent of the user. The collaborating companies of OIZ are those indicated in section 3 of this Privacy Policy."

In the written response to the transfer of the complaint, OIZ warns that it has already been subject to other similar preceding actions, marked with the number E/10004/2020, in which the filing of the respective complaint was agreed upon once compliance by OIZ with personal data protection regulations was verified.

The resolution referred to by the aforementioned entity was issued on 25/02/2021 and resolves a complaint filed against the entities TUCYCLE, AVANT, OIZ, and IBERSCOT for the transfer of personal data of users who register in the corresponding mobile "apps" to access the vehicle rental service. This complaint warns that when a person registers in one of the "apps" of these entities and subsequently installs another one, the second recognizes the user and reuses the data provided by the other "collaborating platform" in order to "expedite the process." It is added that none of these entities informs the user of the possibility of sharing personal data with third companies other than service providers or group companies.

This complaint was also forwarded to OIZ, in accordance with the provisions of Article 65.4 of the LOPDGDD, for it to analyze and inform about the actions taken to comply with the requirements set forth in the data protection regulations.

According to the aforementioned resolution of the filing of actions, in its response to

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In the transfer procedure, dated 27/01/2021, OIZ informed that it had made modifications to its privacy policies to inform about the transfer of user data to third-party collaborating companies with which they share a platform, with the sole purpose of streamlining the registration process in their respective applications in case a user wishes to register and use them in the future, highlighting that such transfer will only occur with the prior and express consent of the user. Likewise, in the section regarding the collection of personal data, they contemplate the possibility of receiving data from third-party collaborating companies, always under the authorization of the interested party. It is indicated that the extracted data includes identification data (name, surname, ID card or passport); email address;

driver's license; and payment token.

Similarly, it was reported that they were in the process of incorporating a mechanism in the user registration process in their mobile application to collect consent for obtaining their data from other collaborative mobility platforms, with the purpose of facilitating the registration process.

Once the reasons presented were analyzed, it was considered that the initiation of a sanctioning procedure was not warranted, as the processing of the complaint in accordance with the provisions of Article 65.4 of the LOPDGDD resulted in the resolution of the issues raised, without the need to clarify administrative responsibilities within the framework of a sanctioning procedure.

This is without prejudice to the fact that the Agency, applying the investigative and corrective powers it holds, may carry out subsequent actions related to the data processing referred to in the complaint, as was well noted in the aforementioned resolution of 25/02/2021.

THIRD: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 26/05/2021. The complaint is directed against OIZ regarding the communication of user data between different companies providing bikesharing services, for not informing its users of such communications and not obtaining their consent. In this complaint, the following is stated:

The complainant registered as a user of OIZ in October 2020, providing her personal data, a photograph of her ID card, driver's license, a selfie, and banking information.

After the registration process, she accepted the privacy policy, which states the following:

"The personal data of the user may be transferred to the following recipients: Entities of the OIZ Group or that may become members of the group in the future (understood as a group of companies in accordance with the provisions of Article 42 of the Commercial Code), or to any third party that acquires all or a substantial part of the assets of OIZ, primarily for the management and administration of the Group."

For this reason, she contacted Customer Service, which informed her about the transfer of her personal data to the entities Ecológica Turismo Sostenible, S.L. (IBERSCOT), Avant Fullstep, S.L. (AVANT), Reby Rides, S.L. (REBY), and Tucycle Bike.

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Sharing, S.L., (TUCYCLE).

It adds that it accessed the privacy policies of all the indicated entities, verifying that none informed about the recipients of the communication of personal data; that currently, OIZ, AVANT, and REBY still do not indicate to whom they transfer the data, while TUCYCLE and IBERSCOT do indicate it; and that it did not receive information from OIZ regarding the modification of the app and its privacy policy.

It warns that the new configuration of the app, at the beginning of the registration process, requests the user's consent for the transfer of their personal data to collaborating companies, but without indicating the recipients and without allowing the completion of the registration process in case of not granting such consent.

In relation to this issue, it provides two screenshots of the Apps of IBERSCOT and OIZ, both with the same structure and information. On this screen, the user is required to provide a phone line number and is offered two checkboxes to mark either option with the following text:

"By continuing, I confirm that I am 18 years old or older and that I accept that... (name of the entity: OIZ or IBERSCOT), in its capacity as data controller

() Processes my data for the provision of the contracted service according to the Terms and Conditions and Privacy Policy that I have read and accept"

() I consent that... (name of the entity: OIZ or IBERSCOT) checks if I am already registered on other collaborative mobility platforms to facilitate the registration process."

The claiming party states that they completed the registration process in the IBERSCOT app, similar to that of OIZ, with the same sequence of screens, requested data, notices, etc. After checking the necessary checkbox to continue, they received the following message:

"After checking, we have detected that you are already registered with OIZ. You accept that this

communicates to Iberscot the following data to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driver's license/Passport, payment token."

They provide a screenshot containing the above text and two buttons: one with the text "re-register" and another with the text "understood."

The claiming party considers that the information must have already been shared, at least partially, for IBERSCOT to know that they were previously registered with OIZ.

They point out that they tried to deny the permission by pressing the "re-register" button and verify that they cannot enter the data without authorizing the sharing, that by opting for "re-register" the APP takes them back to the home screen, where the same process begins, the same SMS verification, and the same screen. Without pressing the "Understood" option, the process cannot continue.

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That the same is true in the case of OIZ, IBERSCOT, AVANT, and TUCYCLE (provides a screenshot with the previously indicated options for accepting the Terms and Conditions and the Privacy Policy, and for accepting the verification of prior registration on other platforms), being somewhat different in the case of REBY.

Upon entering IBERSCOT, they verify that all their data is already loaded (provides a screenshot with data regarding name, surname, email, phone number, address, and bank card). Subsequently, they added balance in IBERSCOT to start using it, and this balance was also updated in the OIZ app and the other indicated companies (provides a screenshot with the balance update in OIZ).

With their complaint, they provide the following documentation:

a) Copy of the conversations held with the Customer Service of OIZ regarding the inquiry made by the claiming party on 02/10/2021 to inform which entities they transfer their personal data to. From the responses provided by OIZ, we highlight the following:

"... We are several companies that work together, provide the same service, and collaborate with each other for the benefit of the customer. In case customer information is shared from one company to another, it will always ask for your authorization and consent to do so... The data is never transferred to any company that the user has not given their consent to..."

"The companies are as follows: Reby, OIZ, Iberscot, Tucycle, and Avant."

"It is a collaboration to offer a more convenient service; so that if you download the app of any of these companies, you no longer need to validate your information in each of them."

b) Extract from the privacy policy available on the OIZ website, although it does not refer to the communication of personal data to third entities.

FOURTH: On 18/06/2021, the General Subdirectorate for Data Inspection accessed the Privacy Policy of OIZ, available on the website oizbike.com. The content of this document, which states "updated on 25/05/2021," coincides with the content mentioned in Background Second.

On the same date of 18/06/2021, it was also verified that the website oizbike.com lists the

"Collaborative mobility platforms in the city of Barcelona-OIZ": AVANT, IBERSCOT, OIZ, REBY, and TUCYCLE.

FIFTH: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to OIZ, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer was carried out in accordance with the rules established in Law 39/2015, of

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1st of October, of the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 05/07/2021 as evidenced by the acknowledgment of receipt in the file. On 05/08/2021, this Agency received a response letter from OIZ in which, after indicating that the complaint was submitted by competitors who did not directly address OIZ to resolve the issues, the following information is provided:

- OIZ is a shared electric mobility company that offers motorcycle rental services through a mobile application in the city of Barcelona with a license from the City Council of this city. To provide the service, it uses various platforms that allow the user to contract the services, among which is the entity REBY, which offers OIZ an aggregation service through its mobile App.
- On 21/05/2021, a few days before the complaint was filed, it updated its Privacy Policy, which is accessible on its website, and expanded the information provided to users during the registration process. It provides the document, the text of which, regarding the transfer of personal data to collaborating mobility entities, coincides with that noted in Background Second.
- OIZ may carry out a transfer of personal data to other collaborating mobility entities only with prior authorization from the interested party.
- The data is transferred to collaborating companies of OIZ, which are not companies of a group in the sense of Article 42 of the Commercial Code.
- The sole purpose of such transfer is to expedite the registration process in the respective applications of the collaborating entities, in case the user wishes to register and use them in the future.
- As stated in the Privacy Policy, information is not shared by default with potential recipients, but only when express consent from the user has been obtained during the registration process in the OIZ app or during registration in the app of another collaborating entity, which can be consulted on the website.
- Regarding the incident expressed by the complaining party concerning the "permission" for the transfer, I inform OIZ that it did not contact the entity at that time to verify whether an error was occurring in the application that justified such circumstance. It adds that the screenshots provided do not allow verifying what the situation was.
- The verification of the existence of a prior registration is only carried out if the interested party consents. In this case, it is verified whether the phone number has already been registered previously in one of the collaborating entities. The result of the verification is communicated to the client and, if applicable, consent is requested to complete the information, thus simplifying the registration.

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. OIZ does not have access to the billing data, which is recorded directly by the payment service provider, as informed to the interested party. The system generates a numeric code or anonymous payment token, which does not allow access to personal data, and which can be shared with other collaborating entities with the express consent of the user. The entities, including OIZ, only know the balance in order to inform the user whether they can use the service or not.

. Currently, it is only necessary for users to accept the Terms and Conditions, as well as the Privacy Policy of OIZ, for users to complete their registration process, and it is not verified whether a user has previously registered with the collaborating entities. A screenshot of the OIZ application is provided, which shows a single checkbox with the text "I authorize the processing of my data for the provision of the contracted service according to the terms and conditions and privacy policy that I have read and accept."

. It maintains the service provision relationship with REBY, which allows the use of this entity's platform, as an aggregation service that brings together different options on a single platform.

In the same written response to the transfer procedure, OIZ again warns that it has already been subject to other similar previous actions, marked with the number E/10004/2020, in which the filing of the respective complaint was agreed upon, once compliance by OIZ with personal data protection regulations was verified.

SIXTH: On 06/10/2021, in accordance with Article 65 of the LOPDGDD, the complaint submitted by

the complainant was admitted for processing.

SEVENTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGD, being aware of the following points:

a) On 22/02/2022, it was verified that on the website https://ajuntament.barcelona.cat/gracia/es/noticia/adjudicacion-definitiva-de-las-licencias-de-motos-y-bicis-de-uso-compartido_951038, TUCYCLE, AVANT, IBERSCOT, and OIZ are listed as operators of the motorcycle service. This information is dated 19/05/2020 and corresponds to the definitive awarding of licenses for shared use motorcycles (348 vehicles for each of the entities).

b) On 21/03/2022, the AEPD received the response prepared by OIZ to the information request made by the Inspection Services, in which it informs the following:

. The Inspection Services requested OIZ to carry out various tests at C/ Jorge Juan, 6

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current version of its mobile application, in the version that was in production on 08/19/2020 and in which they planned to implement.

OIZ clarifies that it cannot carry out any testing on past versions of the application due to technical impossibility, as the infrastructure has changed and due to the technology on which these applications are based.

In relation to the current application, it informs that, following the requirements of the AEPD and the modifications made to simplify processes, it does not check whether a user is registered with mobility collaborating entities such as AVANT, IBERSCOT, or TUCYCLE, that there is no data transfer between these entities, and that there is only a relationship with REBY, which acts as the data processor for OIZ and provides the service from the REBY application itself.

Furthermore, regarding the balance service of the application, it states that it is in the process of integrating with a new provider.

In the test conducted for registering a new user, after filling in the data, consent for the communication of data to other entities is not required.

In this regard, it provides screenshots of the application. In the first screen of the registration process, where the phone number is entered, there is a single checkbox (unchecked by default) with the following text:

“Process my data for the provision of the contracted service according to the Terms and Conditions and

Privacy Policy that I have read and accept.”

On the other hand, OIZ was required to provide the details recorded in its information systems regarding

consents granted and not granted by real users between

08/19/2020 and the present. OIZ reported that on

08/16/2021, data communications from its application to other collaborating applications ceased, so the consents obtained are prior to that date, and that currently the only consents recorded are those coming from the aggregation service offered by the company REBY.

In the same way, OIZ only receives personal data from the aggregation service offered by the company REBY and only from those users who have expressly accepted that REBY transmit their personal data.

At the time of user registration, no checks are made to determine whether the user is registered on other platforms. “This can only occur when using the application of Reby Rides, S.L., which acts as

the data processor, in the event that a user wishes to use the mobility aggregation service with an OIZ vehicle; at which point they will be informed that, for the provision of the service, OIZ will have access to the data provided. However, no checks are made in other databases, as the data is updated directly in OIZ's database."

It provided results from databases containing the content of the consents granted by users. Only the fields "User_id" are recorded, which is, as stated, the unique identifier associated with the user, a field for the date of consent acquisition "consent_timestamp," and a descriptive field of the consent "consent_from," which only takes the values "consent-from-reby-app," "consent-from-co-app," "other."

It provided a copy of the Record of Processing Activities (RAT) in its versions from August 2020 and August 2021.

In the August 2020 version, regarding the processing carried out by TUCYCLE for the management, provision, and billing of the service, the categories of recipients to whom the data is communicated are indicated:

"Third-party mobility companies that provide their services jointly; City Council of Barcelona; public administrations, courts, and tribunals; entities of the OIZ group; providers of administrative, accounting, tax, IT, and marketing services; payment entities; traffic authorities."

In the August 2021 version, regarding the same processing and data communications, it states:

"City Council of Barcelona; public administrations, courts, and tribunals; providers of administrative, accounting, tax, IT, and marketing services; payment entities; traffic authorities."

OIZ provided a copy of the different versions of its Privacy Policy, dated 06/24/2020, 01/19/2021, 05/21/2021, and 03/21/2022.

The version dated 06/24/2020 includes the following section regarding the communication of personal data:

"7. Do we share your personal data with third parties?"

Yes. We share your Personal Data (i) with other entities of the OIZ group, (ii) with external providers who assist us with various issues related to the Service, and (iii) with authorities or public bodies..."

The sections corresponding to the origin of personal data and the communication of data to third parties in the versions dated 01/19/2021 and 05/21/2021 coincide with the information mentioned in the Second Background. These sections are modified in the version of 03/21/2022, as follows:

"3. Data Collection.

At OIZ, we obtain the personal data of our users through three channels, which we indicate below...

I. Data entered by the User themselves...

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II. Data obtained during the use of the Service...

III. Personal data from the aggregation service. If you are a user of the mobility aggregation service provided by Reby Rides S.L., at the moment you wish to drive a vehicle from OIZ, you will be informed that for the completion of the trip, your data will be shared between Reby and OIZ, by virtue of the relationship we maintain, with Reby Rides, S.L. being our data processor. The sharing of this data is necessary to provide you with our services:

- Identification data (name, surname, ID card or passport);
- Email address;

- Driver's license;
- Payment token. The token is a unique numerical code made up of similar digits that replaces the credit card data during the transaction. Therefore, your card data will not be transmitted, only this secure code."

"7. Data Sharing"

At OIZ, we guarantee that your personal data will never be sold to third parties. However, we want to explain that some of your data may be securely transferred, in accordance with our obligations as data controllers, to third parties with whom we work to facilitate and improve our services...

User Personal Data may be transferred to the following recipients:

- Public Administrations, Courts, and Tribunals...
- Providers that offer services to OIZ...
- Payment entities...
- Traffic authorities...
- A copy of the data processing agreement between REBY (data processor) and OIZ (data controller) dated 27/02/2020 is provided. This agreement stipulates that the data processor will perform the following services, among others: the provision of the platform and App service to the data controller and maintenance services for the Platform and the App.

c) On 05/05/2022, a response prepared by OIZ to a second request for information made by the Inspection Services was received by the AEPD, in which it states the following:

- That the data started to be shared on 04/08/2020 and stopped being shared on 16/08/2021.
- That the user is asked for consent at the time of verifying if they are already registered with another mobility operator and to import their data from another operator.

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It provides screenshots of the old version of the app where, on the first screen, there are two checkboxes with the following text:

"I authorize the processing of my data for the provision of the contracted service according to the terms and conditions and privacy policy that I have read and accept"

"I consent for OIZ to check if I am already registered with other collaborative mobility platforms to facilitate the registration process."

And there is a "Continue" button at the bottom of the screen.

On the second screen, the text states:

"After checking, we have detected that you are already registered with [insert name of the Operator].

You agree that this operator communicates the following data to OIZ to expedite the registration process, in order to provide you with our services: name, surname, email, ID card/Driver's license/Passport, payment token.

We remind you that you can exercise your rights as described in our Privacy Policy."

And there are two options; one with the text "Register again" and another with "Understood!".

- Regarding the consent "consent-from-co-app," it states:

"The purpose was to authorize OIZ to check if the user was already registered with any of the other collaborative mobility operators.

If this user was already registered with another mobility operator, the data would be imported to expedite the registration process."

"[...] we confirm that both consents refer to the same type of consent for the importation of the user's data. The consent referred to as "Consent-from-co-app" is the name currently given to the consents collected prior to the change on 16 August 2021 and which, according to the prescription of the very serious infringements considered in Article 71 of the Organic Law on Data Protection

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Personal and Guarantee of Digital Rights, may be archived for a period of 3 years.”

. That the data was shared among the operators REBY, TUCYCLE, IBERSCOT, and AVANT.

. “[...] the database to which OIZ had access before the change made on August 16, 2021, could only be consulted if the user had authorized OIZ to access their profile and if this access had been granted from OIZ or, if it had been granted from the Reby application in case of wanting to use a vehicle owned by OIZ in the aggregation service.”

. That the shared data included name, surname, mobile phone, email, ID card or passport, driver's license, and payment token.

. “According to our data, there are 718 users who were initially registered in the OIZ application and, subsequently, as long as the user gave their consent, were imported by one or more collaborating operators, which have been listed in section 1.d above.”

. In relation to the measures they had implemented for the operators to access the same database, it states:

(...)

It should be noted that the users' data was never shared (in the strict sense) among the mobility operators, that is, before the change on August 16, 2021, there was a single user profile to which access was granted to the operators or not, depending on the consents granted by the user.”

OIZ provides a list with all the consents of the type “consent-from-co-app” where there are 5955 consent records and a date range for the field “consent_timestamp” from 30/06/2020 to 22/03/2022.

That the field “Consent-from-co-app” did not exist in the previous version of the application, but is the current name given to the consents prior to the change made after 16/08/2021.

EIGHTH: By resolution dated 13/10/2022, the expiration of the previous investigative actions mentioned in Antecedent Seventh was declared, due to the passage of twelve months counted from the admission of the complaint without an agreement to initiate sanctioning proceedings having been issued.

In the same resolution, it was also agreed to open new investigative actions and incorporate into these new actions the documentation that integrates the previous actions that are declared expired.

NINTH: In the new preliminary investigative actions agreed upon, the following verifications are carried out:

. On 27/02/2023, it is verified that the OIZ App does not allow the registration of new users.

. On 03/03/2022, it is verified in the OIZ application that, on the first screen of the registration process for a new user, where the phone number is entered, there is a single checkbox (unchecked by default) with the following text:

“Process my data for the provision of the contracted service according to the Terms and Conditions and Privacy Policy that I have read and accept.”

. Due to the aforementioned complaints, preliminary investigative actions were also carried out against the entity REBY, within which an inspection was conducted at the entity's premises in Barcelona, on 07 and 08/03/2023. During this inspection, the representatives of the aforementioned entity made the following statements, which are recorded in the respective Inspection Report, which was signed by all participants:

“2.1. They provide all the technological platform, including the development of the mobile APP and the associated database, to the operators Eco-Lógica Turismo Sostenible, S.L. (hereinafter IBERSCOT), Oiz Ridesharing, S.L. (hereinafter OIZ), Tucycle Bikeshearing, S.L. (hereinafter TUCYCLE), and Avant Fullstep, S.L. (hereinafter AVANT) who provide a mobility service in the city of Barcelona.

(...)

2.2. Regarding whether the operators IBERSCOT, OIZ, TUCYCLE, AVANT continue to provide service, they state that they no longer provide service since February 16, 2023.

2.3. (...)

2.4. That currently REBY has completely ceased its activity.

2.5. In relation to the contracts for the technological platform and APP service, including the aggregation service, provided by REBY to the operators, they provide these contracts...

2.6. That they are not aware that the operators may have collaboration contracts among themselves in the context of the service provided by REBY.

2.7. That there is only a contract for the processing assignment by REBY, which they have already provided to the Agency previously.

Regarding the access of the operators to the database and associated query tools, they state:

2.8. That REBY only provided each operator with reports with aggregated data or

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statistical data on the use of the fleet by the operator in question. That they cannot provide any request from the operators regarding those reports.

2.9. (...)

2.10. That the database query tools (...) did have direct access for the respective operators. However, through these tools, they only had access to their own users.

2.11. (...)

(...)

Regarding the sharing of data among all operators:

2.14. That all tables in the database are common to all operators.

2.15. That the person accessing the data in REBY as a service provider to the operators is the same person accessing it on behalf of REBY providing its services as an independent operator.

2.16. That prior to August 2021, there was only 1 record in the database for each user. That this unique record was accessible to all operators, although only once the user had given permission in the APP of each operator.

2.17. That after August 2021, there was 1 record in the database for each user and for each operator in which they were registered. That, during the migration, the unique records per user that existed previously had to be forcibly replicated as many times as there were operators in which they had registered.

2.18. That, in theory, and from the perspective of access permissions to the database, all APPs of all operators including REBY could access the complete database both before and after August 2021.

Regarding consent for the sharing of user data among operators:

2.19. That prior to August 2021, a user was not allowed to register unless they consented to check if their phone number had already been registered with any operator and, if so, to import their data to the operator they were registering with. The reason is that there was only one unique record per user in the database that all operators needed to access. A user is exclusively determined by the phone number with which they registered. In the software, it was not possible to define different users associated with the same phone number.

2.20. That regarding the first screen of the operators' App where it states:

"I consent to [OPERATOR] checking if I am already registered on other collaborative mobility platforms to facilitate the registration process."

That this checkbox had to be marked forcibly to continue with the registration process.

2.21. That regarding the second screen of the operators' App where it states:

"After checking, we have detected that you are already registered with [include name of Operator]. You agree that this communicates to... [OPERATOR] the following data to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driving License/Passport, payment token.

We remind you that you can exercise your rights as described in our Privacy Policy."

And there are two options; one with the text "Register again" and another "Understood!".

That by clicking on "Understood", consent was indeed registered. If clicked on "Register again", it returned to the initial screen where the phone number is entered to receive an SMS.

2.22. That they do not remember what the process was for the REBY App.

2.23. That prior to August 2021, therefore, the five operators automatically shared all data of registered users, if previously these had

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consented to import their data, as there is only 1 unique record in the database.

2.24. That prior to August 2021, the "importation" of data from other operators was not such, but rather it was truly allowing access to the only existing record of that user in the database.

2.25. That, prior to August 2021, REBY also accessed the unique record of a user just as the other operators did. They are unaware of where the user consents for this access by REBY are located.

2.26. That, before August 2021, the Apps of all operators, including REBY, functioned the same way, as they recall, that is, if a user wanted to register and was already registered with another operator, they always requested consent.

2.27. That before August 2021, when a user used the aggregation service, REBY did not transfer data of that user to the operator from which they wanted to drive the vehicle, assuming that the user was already registered with that operator. And that, in this case, REBY did not collect new consent. They cannot provide a screenshot of the REBY app with the user's interaction in this use case due to technical impossibility.

2.28. That, after August 2021, the option for "importation" of the user's data when a user was registered with another operator was no longer available, so the user had to complete the entire registration process. That no operator requested consent from the user during their registration process, only REBY to provide the aggregation service. That where there are dates of consent after August 2021, it is because it actually refers to consents given from the REBY app for the use of the aggregation service.

2.29. That the only table they have record of that stores consents is called ***TABLE.1. The field descriptions of this table are:

id: unique identifier of the consent

timestamp: date of the consent and date on which the record is created.

origin_company_user_id: user who gives the consent (equivalent to their phone number)

destination_company_id: company to which consent is given to access the data.

type: they do not know its meaning and it always has the value 1.

2.30. That they do not know where the consents given from the REBY app are located.

(...)

During the indicated inspection, the Services of the AEPD accessed the database that supports the mobility service provided by REBY as an operator, the mobility aggregation service that REBY provides, as well as the technological platform and mobile App with which the other operators operate. Through this access, it is verified:

1. That the total number of users is:

REBY

1,034,859

IBERSCOT

13,023

OIZ

14,657

TUCYCLE

10,604

AVANT

15,557

2. That the data associated with a user registered after August 2021 with the different operators, excluding REBY, may vary, including the payment token and the balance.

3. That there are consents in the consent table ***TABLE.1 for the operators TUCYCLE, AVANT, OIZ, IBERSCOT. It is verified that there is no record.

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records associated with REBY.

4. The oldest consent date is 29/05/2020 08:44.

5. It is verified that:

a. For the operator AVANT, the first consent is dated 29/05/2020 and the last is dated 14/02/2023.

b. The oldest consent given from IBERSCOT is dated 30/06/2020 and the most recent is dated 12/02/2023.

c. The oldest consent given from OIZ is dated 30/06/2020 and the most recent is dated 12/02/2023.

d. The oldest consent given from TUCYCLE is dated 30/06/2020 and the most recent is dated 13/02/2023.

6. The way to know which operators a given operator has shared data with, or even if they have shared it at all, is through the following procedure:

For a specific user, one must look in the session table for the first sessions of that user for each operator, that is, when was the first time that user used the app of each operator. If the first session of all is from the operator in question, it is inferred that they must have "shared" the data with the other operators whose first session for that user is later. It is verified that the date of the first session in an operator coincides with the date of the consent given from that operator.

In the corresponding preliminary investigation report, the Inspection Services of the AEPD conclude the following:

"3. It is verified that currently neither the REBY App nor the OIZ App allow the registration of new users. REBY states that it has completely ceased its activity and is in a pre-insolvency situation. The current situation of OIZ in this regard could not be verified, as it was not requested.

4. Regarding data sharing between operators and consent, REBY states that:

a. Prior to August 2021, there was only a single record per user, which all operators had access to. Therefore, all data associated with the user, including but not limited to name, surname, mobile phone, email, ID or passport, driver's license, payment token, balance, was shared completely and at all times among all operators.

b. Prior to August 2021, the consent given by the user is not for importing data since nothing is imported; it is for accessing the user's unique record.

c. Prior to August 2021, a user was not allowed to register unless they gave consent to check if their phone number had already been registered with any operator and, if so, to "import" their data to the operator they are registering with. Since OIZ reports that they cannot access the old versions of their App for technical reasons, it could not be verified whether granting consent for data matching was a requirement for the user to complete the registration in the App.

d. Data sharing between operators began, as stated, on 04/08/2020; however, it is verified that the oldest consent is dated 30/06/2020. It also states that data sharing existed until August 16, 2021.

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It has been established that, on a date subsequent to August 2021, the OIZ app no longer collected consents...

8. There are deficiencies in the information provided to users in the privacy policy:

a. On June 24, 2020, users were not informed about the sharing of data with other operators nor what those were. It is noted that on January 19, 2021, they did provide such information."

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to issue this resolution.

II

Possible infringements

On November 6, 2020, a complaint was received by this Agency directed against the entities TUCYCLE, AVANT, OIZ, and IBERSCOT regarding the transfer of personal data of users who register in the corresponding mobile "apps" to access the vehicle rental service. This complaint warns that when a person registers in one of the "apps" of these entities and subsequently installs another one, the second recognizes the user and reuses the data provided by the other "collaborating platform," with the aim of "streamlining the process."

The same complaint highlighted that none of these entities informed the user that their personal data was shared with third companies, which were shared among the mentioned entities.

This complaint led to the proceedings indicated with the number E/10004/2020, in which, by resolution dated February 25, 2021, it was agreed to archive the respective complaint as the initiation of a sanctioning procedure was not warranted since the complaint had been addressed.

The archiving of proceedings was agreed after following the procedures regulated in Article 65.4 of the LOPDGDD, provided to assess whether or not to admit the complaint for processing. This article states the following:

"4. Before resolving on the admission of the complaint for processing, the Spanish Agency for Data Protection may refer it to the data protection officer designated by the data controller or processor, if applicable, or to the supervisory body established for the application of codes of conduct for the purposes provided in Articles 37 and 38.2 of this organic law."

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The Spanish Agency for Data Protection may also forward the complaint to the data controller or processor when a data protection officer has not been designated or when they are not adhered to extrajudicial conflict resolution mechanisms, in which case the data controller or processor must respond to the complaint within one month."

In turn, Article 37 of the LOPDGDD cited in the previous provision establishes:

"Article 37. Involvement of the data protection officer in the event of a complaint before the data protection authorities.

1. When the data controller or processor has designated a data protection officer, the affected party may, prior to submitting a complaint against them to the Spanish Agency for Data Protection or, where appropriate, to the regional data protection authorities, address the data protection officer of the entity against which the complaint is made.

In this case, the data protection officer will communicate the decision made to the affected party within a maximum period of two months from the receipt of the complaint.

2. When the affected party submits a complaint to the Spanish Agency for Data Protection or, where appropriate, to the regional data protection authorities, those authorities may forward the complaint to the data protection officer so that they respond within one month.

If, after this period, the data protection officer has not communicated to the competent data protection authority the response given to the complaint, that authority will continue the procedure in accordance with the provisions of Title VIII of this organic law and its implementing regulations.

3. The procedure before the Spanish Agency for Data Protection will be as established in Title VIII of this organic law and its implementing regulations. Likewise, the autonomous communities will regulate the corresponding procedure before their regional data protection authorities.”

According to the aforementioned, the indicated mechanism prior to the admission of complaints submitted to the Spanish Agency for Data Protection consists of forwarding them to the Data Protection Officers designated by the data controllers or processors, or to them when they have not designated any, so that they proceed to analyze the complaints and respond within one month.

Thus, when the actions taken in view of the complaint address the issues raised by the complaining party and the responsible entity adopts the necessary measures to align its actions with the requirements set forth in data protection regulations, the AEPD may decide not to continue the procedure that follows the admission of the complaint, established in Title VIII of the LOPDGDD, which contemplates the possibility of carrying out preliminary actions and initiating a sanctioning procedure, if applicable.

This occurred in the aforementioned precedent (E/10004/2020), in which the filing of the complaint was agreed upon, considering the response given by the entity OIZ.

According to the aforementioned resolution for filing actions, dated 25/02/2021, in its response to the transfer procedure, dated 21/01/2021, OIZ informed that it had made modifications to its privacy policies to inform about the transfer of user data to third-party collaborating companies with which they share.

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platform.

Similarly, it was reported that it was in the process of incorporating a mechanism into the user registration process in its mobile application to collect user consent for obtaining their data from other collaborative mobility platforms, with the purpose of facilitating the registration process.

Once the reasons presented were analyzed, it was considered that the initiation of a sanctioning procedure was not warranted, as the processing of the complaint in accordance with the provisions of Article 65.4 of the LOPDGDD resulted in the resolution of the issues raised, without the need to clarify administrative responsibilities within the framework of a sanctioning procedure. This is without prejudice to the Agency, applying the investigative and corrective powers it holds, being able to carry out subsequent actions related to the data processing referred to in the complaint.

Shortly after the resolution that concluded the previous actions was issued, on 12/03/2023, this Agency received a letter from the City Council of Barcelona which included a technical report, dated 29/01/2021, from the Mobility and Infrastructure Management. This letter reports the same factual circumstances already analyzed in the aforementioned precedent, regarding the communication of user data between the different companies providing bikesharing services, for failing to inform their users of such communications and for not obtaining their consent. A fifth company, REBY, is also reported for sharing the databases of records and users without their prior consent.

Furthermore, the facts that motivated the letter from the City Council of Barcelona occurred in a time period prior to the issuance of the resolution closing the file number E/10004/2020. Specifically, the verifications were carried out on the following dates: 10/08/2020, 26/10/2020, and 01/12/2020.

Subsequently, a complaint was received by this Agency from A.A.A. on 26/05/2021 against the same entities, in which the same factual circumstances already analyzed in the aforementioned precedent are highlighted, regarding the communication of user data between the different companies providing bikesharing services, for failing to inform their users of such communications and for not obtaining their consent.

In both cases, it was deemed appropriate to admit the complaint for processing in order to carry out the necessary verifications regarding the information received from OIZ.

Thus, it was agreed to open preliminary investigation proceedings to verify whether the measures reported by that entity in the previous case were effectively and adequately implemented.

These actions have allowed for the confirmation that the entities involved shared the personal data of users from the beginning of their activity in the city of Barcelona in the summer of 2020, without the consent of the affected individuals and without properly informing them about such personal data processing, which was indeed foreseen in their Registry of Processing Activities.

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The entity REBY, which provided the necessary technological platform for the service delivery to users, has acknowledged that there was only one record per user in the database, associated with their phone number, which was accessible to all operators. This entity stated that such access was only granted when the user had consented, but also clarified that a user was not allowed to register unless they provided their consent to check if their phone number was already registered with another operator and, if so, for the operator they were registering with to access the only existing record of that user in the database; this was due to the software not allowing the definition of different users associated with the same phone number.

Regarding the information provided to users, the Inspection Services verified that initially users were not informed about this "data sharing," although the versions of the Privacy Policy of OIZ dated 19/01 and 21/05/2021 included details of the recipients of the information. The first of these versions predates the resolution of archiving issued in the file E/10004/2020 and the complaint from the City Council of Barcelona, and the second is simultaneous to the filing of the complaint by A.A.A.

Notwithstanding the above, it is recorded in the proceedings that the entity OIZ informed the Inspection Services that, following the requests from the AEPD and the modifications made to simplify the procedures, as of 16/08/2021, they ceased to check if a user was registered with any of the other collaborating mobility entities and stopped the data communications, with no evidence to the contrary. On the other hand, the Inspection Services verified that, on a date after August 2021, the OIZ mobile app no longer collected consents, that during the user registration process, consent for data communication to third parties was not required, but only for the processing of data necessary for the provision of the service; that its Privacy Policy contained no reference to data sharing with other collaborating mobility companies; and that in its Activity Record of Treatments, in the version from August 2021, the reference to the communication of data to "third mobility companies providing their services jointly" disappeared.

It can therefore be concluded that with the indicated measures, OIZ carried out the regulatory compliance required by this Agency.

In accordance with the above, this Agency considers it appropriate to agree to archive the complaint that has led to these proceedings concerning the entity OIZ.

It is also taken into account, (i) that the reported data sharing had ended at the time the present complaint was admitted for processing; and (ii) that OIZ has not provided service since 16/02/2023, having verified that currently the OIZ App does not allow the registration of new users.

Therefore, the archiving of the proceedings is appropriate, without prejudice to the Agency, C/ Jorge Juan, 6

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applying the investigative and corrective powers it holds, being able to carry out subsequent actions related to the data processing referred to in the complaint.

Thus, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A., the CITY COUNCIL OF BARCELONA, and OIZ BIKESHARING, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-110422

Mar España Martí

Director of the Spanish Agency for Data Protection

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